

File No.: EXP202303215

Content

BACKGROUND.....	1
FIRST: Submission of complaints and documentation provided.....	1
SECOND: Verification actions by the SGI.....	3
THIRD: Transfer of the complaint.....	4
FOURTH: Admission for processing.....	5
FIFTH: Document with entry of police diligence regarding the facts subject to the complaint.....	5
SIXTH: Document from the respondent.....	6
SEVENTH: Agreement to initiate sanctioning procedure.....	7
EIGHTH: Resolution proposal of 18/06/2024 and allegations.....	7
NINTH: Proven facts.....	9
PROVEN FACTS.....	10
LEGAL GROUNDS.....	12
I Competence.....	12
II Breach of obligation.....	13
III Classification and qualification of the infringement.....	16
IV Proposal for sanction.....	17
RESOLVES:.....	19

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following BACKGROUND

FIRST: Submission of complaints and documentation provided.

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Between the dates of 03/03 and 17/03/2023, SIX COMPLAINTS were received from attendees at a birthday celebration in a venue for minors on the day ***DATE.5, which are included in the GENERAL ANNEX.

The complaints are directed against PLAY FUL KIDS, S.L., located at c Ricart 9, Sant Adrià de Besòs, Barcelona, with NIF B10790327 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainants agree in stating that, due to an altercation (...) in front of two attendees, the next day several attendees, including complainants 1 and 2, posted negative reviews on GOOGLE. "A few hours later," explains complainant 1, ***RELATIONSHIP.1, complainant 2 received via WhatsApp a message from the ***POSITION.1 of the venue, where a video appears indicating that if I do not "delete" (complainant 2) the review writings, they would use the video.

Complainant 2 states the same in their complaint.

The complainants state that due to an open campaign by the Sant Adrià de Besòs City Council on Twitter against gender-based violence, ***POSITION.1 and ***POSITION.2 of the respondent establishment posted the video on ***DATE.1. They indicate the ***URL.1, which contains the comment about complainant 1 as "male chauvinist abuser and revealing my position of ***POSITION.3."

Complainant 3 states that they attended as a guest at the children's birthday party and due to the incident that arose among some people, they also received several messages from ***RELATIONSHIP.2 and a partner of the respondent company asking their friends to delete the reviews or they would use the video.

Complainant 6 indicates that they attended as a guest at the children's birthday party and learned that the video had been disseminated by ***POSITION.1 and ***POSITION.2 via WhatsApp and social media, in which she and her daughter appear. "The video has already been deleted on Facebook and Instagram, but it still appears on Twitter," "in addition, the video was sent via WhatsApp to one of the attendees."

The following is provided:

a) Complainant 2 provides a screenshot from a mobile phone showing "ds, ***DATE.2," and at the top the number ***PHONE.1, a video with the literal text of the messages:

"I have this video of your ***RELATIONSHIP.2 about to hit my ***RELATIONSHIP.3. (A video is seen from inside a closed establishment that could be the interior of the venue with the attendees, duration 10:48).

Do you want me to come to file the complaint or will you leave everything as it is without further trouble?

C.C.C. has generated a problem for which you are not to blame.

I am very sorry that this happened on your daughter's day.

But if we are honest on both sides, everything was wrong.

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3/21

I intend to do my job as best as I can in your very difficult economic situation, as there are things this person has done personally and things they have done that I will not discuss; she will have her version. She is your friend, and I will not go into details; I have mine. The fact is that I feel sorry for what happened.

It is clear that it was wrong, but I only asked not to dirty the beds; it was not such a big deal, but it triggered everything. I have the entire video of everything that happened, and you do not come off well. So I ask you to leave things as they are, and I will keep the videos stored here.

In the image capture from the video, the first thing seen in the message, saying "I have this video of your ***RELATIONSHIP.2," shows the interior of what could be the play center, a general image taken from a high angle in a corner.

a) Another image capture, showing the same interior of the mentioned establishment with people and minors, under the heading "Ayuntamiento San Adrián, help us stop male violence, watch the video," with the text: "(...) A.A.A. on Twitter twitter.com" and including a copy of the URL: ***URL.1

It can be seen that the image captured from the video matches the one that appeared in the WhatsApp sent to claimant 2, in terms of angle, type of focus, and the space in which it was taken.

b) This same video appears on 9/03/2023, according to the printout sent by claimant 3, who also includes two reviews on GOOGLE, with a printout dated 9/03/2023, "two weeks ago," and in one of them as a "response from ***POSITION.2," it states:

"I have surveillance cameras in which it is very clear what happened. A man who says ***RELATIONSHIP.1 is ***POSITION.3 attempts to assault an older woman from behind. An invitee pushes an older woman who tries to mediate when this same invitee tries to engage with the "****POSITION.1" without any child in her arms. An invitee raising her hand at the "****POSITION.1"; everything that happened that day was recorded.

The company reserves the right to exercise any legal actions that may correspond in the case of defamatory comments and/or evaluations."

SECOND: Verification actions by the SGI.

As a verification action of facts, by the General Subdirectorate of Data Inspection:

- On 8/03/2023, access was made to the website of the Mercantile Registry, and information was obtained about PLAY FUL KIDS SL, an entity registered since 15/07/2022, with the corporate purpose: "recreational, leisure, and children's entertainment activities, as well as any other activity that may derive from or be framed within the scope of the described activities, etc.," with subscribed and paid-up capital of 3,000 euros. A.A.A. and B.B.B. are listed as joint Administrators.

- Printout dated 9/03/2023, 10:40, of a page containing the logo of the campaign against male violence, with the heading from the Ayuntamiento de Sant Adrià de Besòs dated 21/03/2020: "against male violence that confinement should not stop us. If you are suffering it or know someone who may be a victim of male violence, call." Below, a

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4/21

message (...) In response to AjSantAdria (...)” along with a video from inside an establishment where people can be seen, lasting 0:44 and 2:03 p.m.

***DATE.1,. At the bottom of the printout, it reads: ***URL.2.

- A "Twitter video," which, when opened, shows images of the establishment mentioned in the previous point, including minors. It is noted that the video is edited, as after 16 seconds, some non-continuous images are shown compared to those being developed. At the beginning, a conversation can be seen between a user in jeans pushing a child's stroller and a person who appears to be the ***POSITION.1 (who later stands behind the counter). The ***POSITION.1 and the customer seem to be conversing, and a third person approaches them. When the ***POSITION.1 steps back from behind the counter, she and the girl in jeans lightly push each other with their hands, and the third person separates them. Subsequently, a man in dark clothing enters through the front door of the establishment, who seems to be a relative or acquaintance of the girl in jeans, and after a brief dialogue, he takes her to the back of the establishment. After the image is cut, it starts with the man dressed in dark clothing talking to the aforementioned third person, and when she leaves, the man seems to confront her with a gesture (hands raised). They continue talking, and the third person moves towards the counter when the man approaches her while speaking, and when he is close to her, another man intervenes, separating him from the third person and taking him away. The video ends with another cut, at 36 seconds, showing the establishment empty and its interior images, possibly matching the image of the play area with that in the A.A.A. logo on the Twitter profile.

- Printout dated 9/03/2023 of reviews on GOOGLE about the complained company.

It shows: "two weeks ago" the criticisms of the establishment by the people who run it. In another, it states that "We have been to several birthdays and I have never felt comfortable. The ***POSITION.1, who does not move from behind the bar, makes you feel like you are begging for a coffee. But yesterday was the last straw when we suddenly found her and her ***RELATIONSHIP.3 confronting a guest, pulling her sweater and raising her hand when the guest had a child in her arms. I myself had to push the lady away and remind her that there were children. Zero professionalism and safety in a place that is supposed to be for children. I do not intend to return and I will let families know not to invite us from now on.", with the response "from the ***POSITION.2":

"I have surveillance cameras in which what happened is very clear. A man who says

***RELATIONSHIP.1 is ***POSITION.3 attempts to assault an elderly woman from behind. A guest who pushes an elderly woman trying to mediate when this same guest tries to engage the

***POSITION.1" without any child in her arms. A guest raising her hand at the ***POSITION.1"

everything that happened that day was recorded. The company reserves the right to take any legal action that may correspond in the case of defamatory comments and/or evaluations. Regards.

In another, it refers to another criticism coinciding with the name of claimant 2, referring to the

response: Your ***RELATIONSHIP.2 had to be detained to prevent him from hitting an elderly lady."

There are also other negative criticisms that do not relate to the subject of the complaint.

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5/21

THIRD: Transfer of the complaint.

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal

Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was transferred to the party being complained against for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 24, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail to the address of the registered office listed in the Mercantile Registry, c/ Josep Royo 25, local 1, 08930 Sant Adrià de Besòs, Barcelona, which was notified as "absent" on the first attempt of March 31, 2023, and "returned to sender as unknown" on April 3, 2023.

FOURTH: Admission to processing.

On April 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FIFTH: Document with entry of police proceedings regarding the facts subject to the complaint.

On the date of submission April 17, 2023, record 18, from the Catalan Authority for the Protection of Data, the transfer of various documentation related to the facts is recorded.

1) From the Department of Interior of the Generalitat de Catalunya, D. Gral. of ***POSITION.3, the transfer of police proceedings dated ***DATE.3 ***REFERENCE.1 AT USC SANT ADRIÀ is attached. The proceedings contain:

a) Start date ***DATE.3, end date ***DATE.6, complainants, complainants 1 and 3, reported: the ***POSITION.1 of the establishment: PLAY FUL, A.A.A., who report:

-threats, physical mistreatment without injury, threats and damages by complainant 3, and threats to upload to social networks (WhatsApp, Instagram, Facebook, and Twitter) the videos recorded by the security cameras of the establishment PLAY FUL if they did not remove the negative reviews of the establishment and disseminate the images.

The proceedings also include complainant 2 (...) and their victim/complainant declaration record.

-Dissemination of images extracted from a security camera of the children's establishment, PLAY FUL.

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6/21

b) Claimant 3 provides a response from ***POSITION.2 of the establishment to a comment, stating:

"I have security cameras in which it is very clear what happened, evidence that you are defaming my business without any proof other than a profile created to write this. After what you did to a man who says ***RELATIONSHIP.1 is ***POSITION.3 trying to hit a woman who did not do it because one of the guests stopped him, you should be careful with what you say because it is your word against a security video of what happened and this is reportable... You are within your rights not to return and I am within my rights to use the videos I have to report anyone who defames us.

...And you tell your friend that I have everything recorded that if he wants to play this way, it might not turn out well for that macho."

Claimant 3 declares on ***DATE.3 about the events that led to the complaint and that he received a WhatsApp from ***POSITION.1 on the same day of the events. He indicates that on Saturday ***DATE.2 he became aware that the video had been disseminated via WhatsApp, and that different people have written negative reviews about the establishment. "This video has also been published on the TWITTER page in a post from the Sant Adrià City Council and that his complaint is aimed at the improper use of images from a security camera." He provided screenshots of the conversations, the published posts, and the video from the security cameras that appears in the literal "help us stop macho violence in Sant Adrià see the video (...).

c) Claimant 1 declares about the events that led to the complaint and that ***POSITION.1 made a statement in the establishment indicating that he knew it was ***POSITION.3. He acknowledges that he and ***RELATIONSHIP.1, also a claimant, made some negative reviews on GOOGLE, with ***POSITION.1 responding to ***RELATIONSHIP.1 that he should delete the reviews or he would make the videos public. He states that ***POSITION.1 of the establishment made the videos of the party public in various WhatsApp, Facebook, Twitter, and Instagram conversations, mentioning his status as ***POSITION.3 and labeling him as an aggressor and reporting him for macho violence. He provides images disseminated on social networks, and screenshots of conversations from his mobile phone with ***POSITION.1 and copies of the reviews from the GOOGLE page.

d) Statement of A.A.A., in which she recounts the events that occurred according to her, on ***DATE.5, as ***POSITION.1 of the establishment PLAY FUL KIDS and that the next day she saw the negative reviews about her business. She states that she, along with her partner (D.D.D.), proceeded to view the videos from the security camera and “her partner sent the video” to ***RELATIONSHIP.2 of claimant 3, (the declarant states that D.D.D. was a friend of ***RELATIONSHIP.2 of C.C.C.) “so they could see what happened and hoping for an apology from them” and that, instead of apologizing, her establishment began to receive more negative reviews. She provided the video and the negative reviews.

From the ***POSITION.1 of the establishment, the identification data also includes the line ***PHONE.1.

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7/21

SIXTH: Written statement from the respondent.

Dated 2/05/2023, a written statement from the respondent is received indicating that they have received notification on 18/04/2023 of admission to processing. This document addresses the notification of the admission to processing of the complaint in which it is also informed that it concerns the publication on Twitter of a video whose images have been allegedly extracted from the surveillance system of the respondent and have been disseminated. In their statement, they indicate:

1- “It is unfounded that the images have been exposed on Twitter because there is no evidence.” They indicate that they provide a copy of “the TWITTER account of which I am ***POSITION.1, verifying that no image of any personal data of the claimants has been published.” In the copy they provide, a screenshot dated 2/05/23, (...).

2- They indicate that there is an ongoing judicial procedure regarding the matter. They provide a copy of the “summons” for oral trial, minor offense procedure ***REFERENCE.2 for ***DATE.4, for events that occurred on ***DATE.5, in the capacity of “defendant.”

They also provide a copy of part of the police proceedings already referenced in the FIFTH fact.

3- They state that the installation of video surveillance in PLAY FUL KIDS, where the events occurred, has an informative sign and provide a copy of a photograph of it indicating that PLAY FUL will process the data for the purpose of “preserving the safety of the facilities and of the people,” placed at the entrance of the establishment.

SEVENTH: Agreement to initiate sanctioning procedure

Dated 15/09/2023, the Director of the AEPD agrees:

“TO INITIATE SANCTIONING PROCEDURE against PLAY FUL KIDS, S.L., with NIF B10790327, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR and for the purposes of prescription of the infringement in Article 72.1.b) of the LOPDGDD.

“Without prejudice to what results from the instruction, for the purposes provided in art. 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine of 3,000 euros.”

The postal mailing was sent to the physical address of the establishment, c/ Ricart 9, in Sant Adrià de Besòs, Barcelona, resulting in "returned to origin by unknown on 2/10/2023," so its mailing was sent to the Official State Bulletin, appearing published on 6/10/2023, in accordance with Article 44 of the LPACAP.

No allegations were received regarding the initiation agreement.

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8/21

EIGHTH: Proposal for resolution dated 06/18/2024 and allegations.

On 06/18/2024, the instructor issued a proposal for resolution to the Director of the AEPD proposing a sanction against PLAY FUL KIDS, S.L., with NIF B10790327, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 a) of the GDPR, deemed very serious under Article 72.1.b) of the LOPDGDD, for the purposes of prescription, with a fine of 3,000 euros, and "that pursuant to Article 58.2.d) of the GDPR, within 30 days, prove compliance with the measures set forth in the legal basis V.", which stated:

"In this case, it is unknown whether the respondent deleted the video from the Twitter page of the aforementioned City Council, which must be proven, as well as the deletion of the sending of the aforementioned video to claimant 2."

The proposal was sent to the respondent, appearing as expired in the electronic notification.

A.A.A. submitted a document to this AEPD on 06/24/2024, indicating that on 06/18, they received an electronic notification without being able to view it, "since it is not addressed to my name," "it is a company that no longer exists," and requests its sending through other channels.

On 06/28/2024, a document was sent to that person attaching a copy of the proposal for resolution, which was received the same day.

On 07/15/2024, a written statement of allegations from PLAY FUL KIDS S.L. was received, indicating:

- Following the filing of the complaint in the Investigating Court number (...) of Badalona, the claim was filed, without legal basis or any evidence. They also reiterate the multitude of negative reviews about their establishment. They state that "the complaining party has not proven at any time that the alleged images captured by the surveillance system of the respondent have been published on any social network."

They provide as an annex a copy of the judgment from the Investigating Court number (...) of Badalona, stating that they have been acquitted, and that, in that process, "the IP address or the device from which the images subject to this complaint were published was not proven." Upon reading the judgment, it is judgment number ***REFERENCE.1, dated ***DATE.7, highlighting:

- As complainants, claimants 1 and 2, as complainant/defendant, claimant 3, all against A.A.A. (complainant/defendant) for minor offenses of physical mistreatment, minor threats, and minor coercion/threats. Origin, report dated ***DATE.3 from the Mossos.

- In the section of PROVEN FACTS, it states that in response to the negative reviews posted on GOOGLE, by claimant 2, days later after ***DATE.5, in the afternoon when the discussion occurred, "A.A.A. sent to" claimant 2 "a message via WhatsApp in which they forwarded the video recorded by the cameras of the establishment and said to them, 'I have this video of your ***RELATIONSHIP.2 about to hit him... I ask you to...'"

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9/21

Leave things as they are, and I will keep the videos stored, and nothing happened here. I apologize for my mistake and for not being able to contain myself... I ask that you remove what you wrote.

In the third proven fact, it is indicated that "days later, from the Twitter profile '***USUARIO.1', whose

origin and ownership are unknown, the video recorded by the security cameras of the establishment was published.”

- In the SECOND legal basis, it reviews the established facts from the evidence presented, referring to the documentary evidence in the case file and statements. It includes, among others:

“in fifth place, that according to all the statements made and the documentary evidence in the case file, the video recorded by the security cameras of the establishment was published from the Twitter profile ‘***USUARIO.1’.

Beyond the above, the evidence presented in court does not confirm that, as the private prosecution claims, the accused was the author of the publication on that social network—and others—of the videos recorded by the security cameras of the establishment she manages.

To this end, it must be noted that the accused denied ownership of the aforementioned profile and authorship of the message published therein, and since we are not dealing with a verified profile by the technology company, the private prosecution, which bears the burden of proof, has not proposed any evidence—nor even the comparison of the screenshots submitted along with the complaint—that proves that the IP address and the device associated with it from which the tweet was published belong to the accused and that it was indeed she—and not another person—who actually made that publication.”

(...),

“in the present case, the evidence presented in court allows us to verify that the written messages sent by the accused to the complainant were not only a consequence of the public comment previously made by the latter but also included, in several phrases, apologies for her own behavior displayed on the day of the initial confrontation. Therefore, given that the complainant did not even withdraw the comment made after receiving the messages from the accused, it is difficult to understand that it caused any limitation of the freedom of the complainants—this limitation being required for the consummation of the criminal type of coercion—“

- It indicates in the THIRD legal basis that A.A.A. “cannot be declared the author of a minor crime of coercion or, subsidiarily, of threats, as the evidence presented has not confirmed the direct, material, and voluntary participation of the accused in any of the mentioned infractions,” and this is reproduced in the Judgment.

- The respondent states that the personal data captured through the video surveillance system of the establishment has been processed lawfully, fairly, and transparently, without violating Article 5.1.b) and f) of the GDPR, and the security of the processing has been guaranteed, maintaining the confidentiality of the personal data captured by the video surveillance cameras.

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10/21

NINTH: Proven Facts

From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

1- It is established that claimant 1 and ***RELATIONSHIP.1, claimant 2, held a birthday party for their minor daughter on Friday ***DATE.5 at the premises of PLAY FUL KIDS, SL (with subscribed and paid-up capital of 3,000 euros, registered since 15/07/2022, corporate purpose according to the Commercial Registry: recreational activities for children's leisure and entertainment, as well as any other activity that may arise or be framed within the scope of the described activities, etc.). In the aforementioned premises, A.A.A., ***POSITION.1 and ***POSITION.4, jointly responsible for the mentioned premises along with B.B.B., provide services according to the Commercial Registry.

2- During the celebration of the aforementioned event, there was an altercation involving several attendees (claimants 1 and 2, claimant 3, a friend and guest of the former) with the ***POSITION.1 of the premises and their ***RELATIONSHIP.3, acknowledged by all those mentioned both in the

complaint and in the police report. The rest of the claimants stated in their complaints that they attended the celebration as guests.

3- The following day, several attendees of the event, including claimants 1 and 2, acknowledged that they posted negative reviews on GOOGLE, commenting on the premises, and this is evidenced by printed screenshots presented by the claimants, which are also included in a police report that will be referred to.

4- Claimants 1 and 2, ***RELATIONSHIP.4 as stated and as noted in the police report, also provide printed copies of screenshots showing that in the WhatsApp application on the mobile phone provided by claimant 2, and as seen on the device, a video is received from inside the establishment of the celebration, capturing in panoramic mode from an upper part of a birthday celebration venue the vast majority of the establishment, allowing all individuals, including minors, to be seen. In it, the literal text states, "I have this video of your ***RELATIONSHIP.2 about to hit my ***RELATIONSHIP.3. Do you want me to come to file the complaint or will you leave everything as it is without further fuss?" and continues with the literal text mentioning the name of "claimant 3" "has generated a problem for which you are not to blame," "I have the whole video of everything that happened and you do not come out well," "I ask you to leave things as they are and I will keep the videos saved here." At the top of the video, the line ***PHONE.1 appears, which according to the police proceedings in the file corresponds to the ***POSITION.1 of the premises PLAY FUL KIDS, A.A.A., ***POSITION.4 of the aforementioned respondent. It is also noted that the video sent is from the following day, ds (dissabte, in Catalan, Saturday ***DATE.2, as seen on the screen).

5- Additionally, claimants 1 and 2 also indicate in their complaint that the video was posted on ***DATE.1 on Twitter of Sant Adrià de Besòs (which has been active since 21/03/2020, as a means of reporting against gender violence), substantiating this with a screenshot showing images from inside the celebration venue and the address.

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11/21

***URL.1 with the text AjSantAdria Help us stop male violence in Sant Adrià (...)", indicating claimant 2, that the accused of machismo is claimant 1, his ***PARENTESCO.2. The images and the space that can be seen at first glance in the Twitter image capture, its angle of focus, its content, are the same as those that claimant 2 receives on his WhatsApp.

6- The General Subdirectorate of Data Inspection, on 9/03/2023, accessed the page that the Sant Adrià de Besòs City Council has on the internet. On that date, the message "****USUARIO.1 In response to AjSantAdria Help us stop male violence in Sant Adrià (...)" appeared along with a video from inside a children's birthday celebration establishment, where people can be seen, with a duration of 0:44 and 2:03 p.m. ***FECHA.1. At the bottom of the printout, it shows:

***URL.1.

Also included as evidence is the copy obtained on 9/03/2023, which is a "Twitter video", in which the people inside the children's birthday celebration establishment can be seen, noting that these are images obtained from the camera inside the venue, showing the incidents that occurred when it opened, revealing images of the establishment mentioned in the previous point including minors. It is noted that the video is edited, as from 16 seconds onwards, non-continuous images of what was happening are shown and it ends with images of the interior spaces of the establishment without people inside.

7- Claimant 3, among other claimants, also provided a screenshot of the campaign against male violence from the Sant Adrià de Besòs City Council, showing a printout of the screenshot of the video in which the interior of the establishment can be seen. The image matches that referred to in the previous point of the Twitter video.

8- On 17/04/2023, the Catalan Data Protection Authority forwarded to the AEPD a copy of the police proceedings of a criminal complaint dated ***FECHA.3, filed by claimants 1 and 2, with the addition of a presumed violation of the LOPDGDD due to the dissemination through various social networks

(WhatsApp, Instagram, Facebook, and Twitter) of the images recorded by the security cameras of the venue PLAY FUL, c Ricart 9, Sant Adrià de Besòs on ***FECHA.5, at 5 p.m., which is managed by the accused person, A.A.A..

9- In a record of declaration of these police proceedings, ***REFERENCIA.1 AT USCSADRIAB of ***FECHA.3, A.A.A. stated that, the day after, ***FECHA.2 he saw the negative reviews about his business and that after watching the videos from the security camera of the venue where the events occurred, "his partner sent the video to ***PARENTESCO.2 of claimant 3, so they could see what happened and expecting an apology from them."

10- In the police proceedings, a printout of the capture of reviews on GOOGLE about PLAY FUL KIDS is included, which talk about the PLAY FUL KIDS project - PLAY FUL kids (***PUESTO.2) - and refer to the altercation and that "we have security cameras that..."

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12/21

"supports what happened," in another it is indicated that "you are defaming my business" and that a ***POSITION.3 attempts to hit a woman who is in the security video.

11- The respondent acknowledged in her statements before this AEPD, dated 04/18/2023, that the establishment PLAY FUL KIDS SL has a video surveillance system inside the premises that captures personal data, providing a photograph of an informative sign placed on the door of the establishment that informs that PLAY FUL "will process the personal data obtained through the installed video surveillance systems in order to preserve the security of the facilities and of the persons."

12- The respondent submitted in her allegations to the proposed resolution, a copy of the judgment from the Court of Instruction number (...) of Badalona, dated ***DATE.7, which was issued regarding the police complaint filed against ***POSITION.4 of the respondent, A.A.A., for the related events that occurred on ***DATE.5 in her establishment. The judgment acquits the aforementioned

***POSITION.4 of the minor offenses of minor mistreatment, minor threat, and minor coercion/threats.

In the proven facts, it states:

- In light of the negative reviews posted on GOOGLE by claimant 2, days later from ***DATE.5, in the afternoon when the argument occurred, "A.A.A. sent to" claimant 2 "a message via Whatsapp in which she forwarded the video recorded by the cameras of the establishment and said, 'I have this video of your ***RELATIONSHIP.2 about to hit her... I ask you to leave things as they are and I will keep the videos saved and nothing happened here, I apologize for my mistake and for not being able to contain myself... I ask that you remove what you wrote.'"

13- It is noted that the logo of the profile image of the advertisement on Twitter from the Sant Adrià City Council is a photo-image of the interior of the establishment (to be compared with the video) associated with "****USER.1," which is reiterated in the URL. The logo of the Twitter image provided by A.A.A. after the admission of the complaint, dated 05/02/23, is different, (...).

The judgment provided by the respondent, from the Court of Instruction number (...) of Badalona, dated ***DATE.7, indicates in the third proven fact, "days later, from the profile '****USER.1' on Twitter, whose origin and ownership are unknown, the video recorded by the security cameras of the establishment was published."

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 12/5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states:

"The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions..."

C/ Jorge Juan, 6

in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Unfulfilled Obligation

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7 of the GDPR defines "data controller" or "controller" as: the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

Images of individuals that are part of a video are personal data, and this has been recognized, among others, by the ruling of the Constitutional Court, 14/2003, of 30/01.

Article 22 of the LOPDGDD states that:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of individuals and property, as well as their facilities."

(...)

"3. The data shall be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time the existence of the recording is known."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

14/21

For its part, Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

The physical image of a person, in this case contained in images according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to that Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data, which has a broad meaning.

Images generated by the video surveillance system are personal data, so their processing is subject to data protection regulations. The company being complained against is the data controller of the video surveillance data of the PLAY FUL establishment, where individuals can be recognized in the video extracted from the video surveillance system showing the images of the altercation on ***DATE.5 involving the complainants.

The facts subject to the complaint that lead to the accusation against the respondent relate to:

1- A sending of the aforementioned video via WhatsApp to complainant 2, ("I have this video of your ***RELATIONSHIP.2 about to hit my ***RELATIONSHIP.3"), which is also included in the proven facts of the ruling of ***DATE.7 and which complainant 2 submitted along with their complaint. According to the screenshot, it was sent on Saturday ***DATE.2,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/21

and this was expressed by the recipient in her claim. This implies that the video dedicated to certain purposes, and which collects data for those purposes, has been extracted from the operational system of video surveillance of the defendant by her ***POSITION.4 who participated in the altercation, and for purposes that have nothing to do with the security of the premises and the individuals, this type of data processing is carried out.

Resolving that the concept of data processing is broad, the data controller is responsible for lawful processing, which originally deploys its purposes in the security of the premises and its individuals, not in the use for particular purposes and interests of the ***POSITION.1 of the premises, which implies, in addition to processing, that it is communicated, disseminated, and used for other purposes, without a legitimizing basis, in pursuit of a personal interest that, in response to negative reviews, can never justify the data of the attendees in this manner.

2- A statement before the ***POSITION.3 of A.A.A. in which she stated that she watched the video together with her ***RELATIONSHIP.2: "they proceed to view the videos from the security camera" and explicitly indicates that the "video is sent to F.F.F., ***RELATIONSHIP.2 of claimant 3," for which it is necessary to enter and use the system, and, furthermore, an express intention to extract it and again communicate it to a third party.

3- An exhibition of a video recorded inside the establishment of the defendant (data collection) since the images are the same as those on WhatsApp, with a specific purpose such as "preserving the security of the facilities and individuals" which later appears in a medium such as the social network, through Twitter of the Sant Adrià de Besòs Town Hall two days later, whose authorship has not been able to be accredited, despite the fact that the origin of the video is that of the claimant's establishment.

Clearly, in the first two actions referred to, it is evidenced that the video regarding the controversy of the facts belonging to the system installed by the defendant was sent to at least two people, and that reproduces the altercation and shows claimants 1, 2, and 3 as well as staff, some of whom are also claimants and children. All of them are third parties unrelated to the data controller and each of the transmissions constitutes data processing.

Thus, the video was viewed by the ***POSITION.1 of the establishment subject to the claim, and at her convenience, used to disseminate it as a means to attempt to refute the statements of the attendees at

the event regarding the altercation and to pressure with its presentation in a complaint.

This implies the attribution to the defendant of the aforementioned infringement of Article 6.1 of the GDPR as it has carried out at least two processes, through the extraction of the video or part of it to send it to different destinations, for which the aforementioned infringement of Article 6.1 of the GDPR is attributed.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/21

The video transmissions, whether through mobile devices, destined for WhatsApp, in this case of claimant 2, the wife of the aforementioned claimant 1, ***POSITION.3, and to ***RELATIONSHIP.2 of claimant 3 as declared voluntarily before ***POSITION.3 (they extract the video, send it with the aim of having the negative reviews removed), without being questioned in this regard, constitute processing of personal data.

These data were recorded and stored in the surveillance system of the establishment of the respondent for SECURITY PURPOSES of the installation and individuals (among others, containing data of minors, as it is a playroom) which are extracted by ***POSITION.4, ***POSITION.1 of the establishment of the respondent in an accredited manner, and whose data are processed, contemplating this dissemination, to private attendees, forming at least two communications per transmission, as defined in Article 4.2 of the GDPR.

These processes are considered distinct from the original and legitimate one that could have the purpose of ensuring the security of the establishment and individuals, which is informed in the surveillance notice provided by the respondent and is not questioned.

The transmissions of the video to the WhatsApp of claimant 2 and to another person constitute specific processes for which it was necessary to extract the video or part of it and upload or send it with the aim of dissemination for the purposes derived from the proven facts, among others, to achieve the removal of the GOOGLE reviews of the aforementioned establishment, using it to achieve those ends, and not for the purposes for which such a system is contemplated.

Thus, the unilateral use by the respondent for the alleged defense against the negative reviews made against it or its business, or the issues that may arise from the altercation, would not justify the processing of the images of the establishment in the manner noted in the proven facts.

The respondent has not demonstrated that it had legitimacy for the processing resulting from the aforementioned disseminations, therefore the alleged infringement is substantiated.

The evidence as a whole, all rational and coherent, manifested in the complaints, and in the judgment provided by ***POSITION.4 of the respondent, along with the actions recorded in the police proceedings do not cast doubt on the video, its content, its origin, and the aforementioned disseminations. Thus, the presumption of innocence of the respondent regarding the origin of the data, as well as the authorship of the two transmissions must fall in light of the evidence of such facts.

III Classification and qualification of the infringement

The infringement attributed to the respondent is classified in Article 83.5.a) of the GDPR which states: "Infringements of the following provisions shall be sanctioned in accordance with paragraph 2, with administrative fines of up to 20,000,000 euros or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/21

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1.b) of the LOPDGDD, which classifies the

following conduct as very serious:

(...)

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...)"

IV Proposal for Sanction

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i), or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, considering the facts presented and proven, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved in accordance with Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and Corrective Measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.

- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/21

- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The following are aggravating circumstances:

- The conduct of the respondent reflects that the infringement was committed intentionally, according to the context of the literal content alongside their data, the reviews whose impressions are included in the file, and the opportunistic use of images extracted from the video, to pressure the removal of the reviews, which reflect such character and should not serve as a negotiation tool as they involve the infringement of individuals' rights contained and addressed in that video surveillance system (art. 83.2.b) GDPR).
- The category of the affected personal data, with the dissemination of images among minors, given that the establishment is a playroom where this type of individuals congregates. In the words of the CJEU in its Judgment of 8/12/2022, “The image of a person is, indeed, one of the main attributes of their personality, as it manifests their individuality and allows them to be distinguished from their peers. Thus, the right of a person to the protection of their image constitutes one of the essential conditions for their personal realization and especially presupposes the control by the person over their own image, which includes the possibility of preventing its dissemination. The protection of the right to private life is of special importance in this context, due to the ability of photographs to convey particularly personal, if not intimate, information about a person or their family (see, in this sense, ECHR, 7/02/2012, Von Hannover v. Germany, CE:ECHR:2012:0207JUD004066008, paragraphs 95, 96, and 103 and cited case law).” (83.2.g) GDPR).

On the other hand, as a mitigating factor, it is taken into account that the respondent is a company whose activity is not primarily related to the processing of personal data on a regular basis, allowing for the application of Article 76.2.b) of the LOPDGDD.

The balance of the circumstances considered allows for the assessment of a fine of €3,000 (three thousand euros) for the infringement of Article 6.1 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on PLAY FUL KIDS, S.L., with NIF B10790327, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 a) of the GDPR, a fine of 3,000 EUROS, classified as very serious for the purposes of the prescription of the infringement in Article 72.1 b) of the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/21

SECOND: NOTIFY this resolution to PLAY FUL KIDS, S.L. by sending the GENERAL ANNEX.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must

comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of 13 July, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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21/21